UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF ARIZONA

Kevin D Turnage, Plaintiff, v. **ROBERT F. KENNEDY, JR.,** Secretary, U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES, et al. Defendants.	Case No.: CV-25-03367-PHX-SMB **MOTION FOR LEAVE TO SERVE THIRD-PARTY SUBPOENA PRIOR TO RULE 26(f) CONFERENCE** (Expedited Discovery Requested)

DRAFT MOTION

I. INTRODUCTION

Plaintiff Kevin D. Turnage, appearing *pro se*, respectfully moves this Court for leave to serve a third-party subpoena on Google LLC ("Google") prior to the Rule 26(f) conference pursuant to Federal Rule of Civil Procedure 26(d)(1).

The purpose of this limited early discovery is to preserve and recover Plaintiff's own electronically stored information ("ESI") contained in a Google account that was

unlawfully accessed and subsequently disabled. This data constitutes material evidence for the pending litigation. Without immediate intervention, there is a substantial risk that Google will permanently delete the data in accordance with its internal retention policies, causing irreparable spoliation of evidence.

II. FACTUAL BACKGROUND

1. On or about December 18, 2025, Plaintiff's Google account, *kdturnage@gmail.com* ("The Account"), was unlawfully accessed by an unauthorized third party.
2. Following this security breach, Google disabled access to The Account.
3. The Account contains critical evidence relevant to this action, including emails, documents stored in Google Drive, and access logs that may identify the perpetrators of the unauthorized access.
4. Plaintiff has made good-faith efforts to resolve this matter voluntarily with Google, including sending a preservation notice and requesting a data export. To date, Google has not provided a mechanism to retrieve this data.
5. Plaintiff reasonably fears that Google's automated systems may permanently purge the disabled account and its contents if a formal legal demand is not processed immediately.

III. LEGAL STANDARD

Federal Rule of Civil Procedure 26(d)(1) generally provides that a party "may not seek discovery from any source before the parties have conferred as required by Rule 26(f)." However, the Rule explicitly permits early discovery when authorized by court order.

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Courts in the Ninth Circuit apply a "good cause" standard when determining whether to permit discovery prior to a Rule 26(f) conference. *See, e.g., Strike 3 Holdings, LLC v. Doe*, 331 F.R.D. 14, 16 (D.D.C. 2019) (citing standards applicable across federal districts); *Semitool, Inc. v. Tokyo Electron Am., Inc.*, 208 F.R.D. 273, 276 (N.D. Cal. 2002). Good cause is frequently found where the need for expedited discovery outweighs the prejudice to the responding party, particularly in cases involving the preservation of evidence that might otherwise be lost.

IV. ARGUMENT

A. There is Good Cause for Early Discovery to Prevent Spoliation of Evidence.

The primary justification for this motion is the preservation of evidence. Digital service providers like Google operate with automated retention policies. Once an account is disabled for policy violations (even if triggered by a hacker), the window for data recovery is finite. If Plaintiff is forced to wait until the Rule 26(f) conference—which may not occur for several months—there is a high probability that the evidence will be permanently deleted.

Courts have consistently recognized that the risk of evidence destruction constitutes good cause for expedited discovery. The data sought here is unique; it cannot be obtained from any other source. If the account is purged, Plaintiff will be permanently deprived of evidence essential to proving claims and calculating damages in this action.

B. The Request is Narrowly Tailored.

Plaintiff does not seek broad, burdensome discovery. The proposed subpoena (attached hereto as **Exhibit 1**) is strictly limited to: 1. The content of Plaintiff's own specific

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account (*kdturnage@gmail.com*); and 2. Logs related to the security breach and disablement of that specific account.

This request poses no undue burden on Google, as it merely seeks the export of data that belongs to the Plaintiff. Furthermore, this request does not prejudice the named Defendant(s) in this case, as it serves only to gather existing evidence that will likely be discoverable later in the proceedings, regardless.

C. Plaintiff Has No Other Means to Obtain This Information.

Plaintiff has attempted to utilize Google's standard recovery tools and has sent legal notices to Google's legal department without success. A judicial order via a Rule 45 subpoena is the only remaining mechanism to compel the preservation and production of this data before it is destroyed.

V. CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court find good cause exists to deviate from the standard discovery sequence. Plaintiff prays for an Order granting leave to serve the subpoena attached as **Exhibit 1** upon Google LLC immediately, prior to the Rule 26(f) conference.

DATED this ___ day of January, 2026.

Respectfully submitted,

Kevin D. Turnage Plaintiff Pro Se

CERTIFICATE OF SERVICE

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I hereby certify that on January _, 2026, I electronically filed the foregoing with the Clerk of the Court using the CM/ECF system:

Kevin D. Turnage

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UNITED STATES DISTRICT COURT

for the

District of Arizona

Kevin D Turnage

Plaintiff

v.

Robert F Kennedy Jr et al

Defendant

Civil Action No. 2025-CV-03367-PHX-SMB

SUBPOENA TO PRODUCE DOCUMENTS, INFORMATION, OR OBJECTS OR TO PERMIT INSPECTION OF PREMISES IN A CIVIL ACTION

To: Google LLC c/o Corporation Service Company 8825 N 23rd Ave, Suite 100 Phoenix, AZ 85021

(Name of person to whom this subpoena is directed)

☑ *Production:* **YOU ARE COMMANDED** to produce at the time, date, and place set forth below the following documents, electronically stored information, or objects, and to permit inspection, copying, testing, or sampling of the material: See Attachment A, attached hereto and incorporated by reference.

Place:	Date and Time:
Production to be made via secure email or file transfer to: https://drive.proton.me/urls/2BK72ZGHKC#OO8eN5wR	01/26/2026 5:00 pm

☐ *Inspection of Premises:* **YOU ARE COMMANDED** to permit entry onto the designated premises, land, or other property possessed or controlled by you at the time, date, and location set forth below, so that the requesting party may inspect, measure, survey, photograph, test, or sample the property or any designated object or operation on it.

Place:	Date and Time:

The following provisions of Fed. R. Civ. P. 45 are attached – Rule 45(c), relating to the place of compliance; Rule 45(d), relating to your protection as a person subject to a subpoena; and Rule 45(e) and (g), relating to your duty to respond to this subpoena and the potential consequences of not doing so.

Date: _____

CLERK OF COURT

OR

Signature of Clerk or Deputy Clerk *Attorney's signature*

The name, address, e-mail address, and telephone number of the attorney representing *(name of party)* Kevin D. Turnage (Plaintiff Pro Se, who issues or requests this subpoena, are:
1003 E Pinto Ct Gilbert, AZ 85296 kdturnage@protonmail.com 901-220-8664

Notice to the person who issues or requests this subpoena

If this subpoena commands the production of documents, electronically stored information, or tangible things or the inspection of premises before trial, a notice and a copy of the subpoena must be served on each party in this case before it is served on the person to whom it is directed. Fed. R. Civ. P. 45(a)(4).

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PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 45.)

I received this subpoena for *(name of individual and title, if any)* _____

on *(date)* _____ .

❒ I served the subpoena by delivering a copy to the named person as follows: _____

_____

_____ on *(date)* _____ ; or

❒ I returned the subpoena unexecuted because: _____

_____ .

Unless the subpoena was issued on behalf of the United States, or one of its officers or agents, I have also tendered to the witness the fees for one day's attendance, and the mileage allowed by law, in the amount of $ _____ .

My fees are $ _____ for travel and $ _____ for services, for a total of $ 0.00 .

I declare under penalty of perjury that this information is true.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information regarding attempted service, etc.:

Print | Save As... | Add Attachment | Reset

Federal Rule of Civil Procedure 45 (c), (d), (e), and (g) (Effective 12/1/13)

(c) Place of Compliance.

(1) ***For a Trial, Hearing, or Deposition.*** A subpoena may command a person to attend a trial, hearing, or deposition only as follows:
(A) within 100 miles of where the person resides, is employed, or regularly transacts business in person; or
(B) within the state where the person resides, is employed, or regularly transacts business in person, if the person
(i) is a party or a party's officer; or
(ii) is commanded to attend a trial and would not incur substantial expense.

(2) ***For Other Discovery.*** A subpoena may command:
(A) production of documents, electronically stored information, or tangible things at a place within 100 miles of where the person resides, is employed, or regularly transacts business in person; and
(B) inspection of premises at the premises to be inspected.

(d) Protecting a Person Subject to a Subpoena; Enforcement.

(1) ***Avoiding Undue Burden or Expense; Sanctions.*** A party or attorney responsible for issuing and serving a subpoena must take reasonable steps to avoid imposing undue burden or expense on a person subject to the subpoena. The court for the district where compliance is required must enforce this duty and impose an appropriate sanction—which may include lost earnings and reasonable attorney's fees—on a party or attorney who fails to comply.

(2) ***Command to Produce Materials or Permit Inspection.***
(A) *Appearance Not Required.* A person commanded to produce documents, electronically stored information, or tangible things, or to permit the inspection of premises, need not appear in person at the place of production or inspection unless also commanded to appear for a deposition, hearing, or trial.
(B) *Objections.* A person commanded to produce documents or tangible things or to permit inspection may serve on the party or attorney designated in the subpoena a written objection to inspecting, copying, testing, or sampling any or all of the materials or to inspecting the premises—or to producing electronically stored information in the form or forms requested. The objection must be served before the earlier of the time specified for compliance or 14 days after the subpoena is served. If an objection is made, the following rules apply:
(i) At any time, on notice to the commanded person, the serving party may move the court for the district where compliance is required for an order compelling production or inspection.
(ii) These acts may be required only as directed in the order, and the order must protect a person who is neither a party nor a party's officer from significant expense resulting from compliance.

(3) ***Quashing or Modifying a Subpoena.***
(A) *When Required.* On timely motion, the court for the district where compliance is required must quash or modify a subpoena that:
(i) fails to allow a reasonable time to comply;
(ii) requires a person to comply beyond the geographical limits specified in Rule 45(c);
(iii) requires disclosure of privileged or other protected matter, if no exception or waiver applies; or
(iv) subjects a person to undue burden.
(B) *When Permitted.* To protect a person subject to or affected by a subpoena, the court for the district where compliance is required may, on motion, quash or modify the subpoena if it requires:
(i) disclosing a trade secret or other confidential research, development, or commercial information; or
(ii) disclosing an unretained expert's opinion or information that does not describe specific occurrences in dispute and results from the expert's study that was not requested by a party.
(C) *Specifying Conditions as an Alternative.* In the circumstances described in Rule 45(d)(3)(B), the court may, instead of quashing or modifying a subpoena, order appearance or production under specified conditions if the serving party:
(i) shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship; and
(ii) ensures that the subpoenaed person will be reasonably compensated.

(e) Duties in Responding to a Subpoena.

(1) ***Producing Documents or Electronically Stored Information.*** These procedures apply to producing documents or electronically stored information:
(A) *Documents.* A person responding to a subpoena to produce documents must produce them as they are kept in the ordinary course of business or must organize and label them to correspond to the categories in the demand.
(B) *Form for Producing Electronically Stored Information Not Specified.* If a subpoena does not specify a form for producing electronically stored information, the person responding must produce it in a form or forms in which it is ordinarily maintained or in a reasonably usable form or forms.
(C) *Electronically Stored Information Produced in Only One Form.* The person responding need not produce the same electronically stored information in more than one form.
(D) *Inaccessible Electronically Stored Information.* The person responding need not provide discovery of electronically stored information from sources that the person identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the person responding must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from such sources if the requesting party shows good cause, considering the limitations of Rule 26(b)(2)(C). The court may specify conditions for the discovery.

(2) ***Claiming Privilege or Protection.***
(A) *Information Withheld.* A person withholding subpoenaed information under a claim that it is privileged or subject to protection as trial-preparation material must:
(i) expressly make the claim; and
(ii) describe the nature of the withheld documents, communications, or tangible things in a manner that, without revealing information itself privileged or protected, will enable the parties to assess the claim.
(B) *Information Produced.* If information produced in response to a subpoena is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a party must promptly return, sequester, or destroy the specified information and any copies it has; must not use or disclose the information until the claim is resolved; must take reasonable steps to retrieve the information if the party disclosed it before being notified; and may promptly present the information under seal to the court for the district where compliance is required for a determination of the claim. The person who produced the information must preserve the information until the claim is resolved.

(g) Contempt.
The court for the district where compliance is required—and also, after a motion is transferred, the issuing court—may hold in contempt a person who, having been served, fails without adequate excuse to obey the subpoena or an order related to it.

For access to subpoena materials, see Fed. R. Civ. P. 45(a) Committee Note (2013).

ATTACHMENT A

DEFINITIONS AND INSTRUCTIONS

I. DEFINITIONS

1. **"Google"** refers to Google LLC, its agents, employees, attorneys, subsidiaries, and all persons acting on its behalf.
2. **"Plaintiff"** refers to Kevin D. Turnage, the individual initiating this request.
3. **"The Account"** refers to the Google account associated with the email address **kdturnage@gmail.com**.
4. **"Documents"** or **"Data"** includes all writings and electronically stored information ("ESI") as defined by Federal Rule of Civil Procedure 34(a)(1)(A), including but not limited to emails, attachments, word processing files, spreadsheets, presentations, image files, databases, calendars, contact lists, and system logs.

II. INSTRUCTIONS

1. **Production Format:** All ESI must be produced in its native format (e.g., .mbox for emails, .docx for documents, .pdf for portable document files) or in a reasonably usable format that preserves the integrity of the data. All associated metadata (including but not limited to sender, recipient, date sent, date created, and date modified) must be preserved intact.
2. **Method of Production:** In lieu of physical media, Google may provide a secure, one-time download link or access to "Google Takeout" for The Account, provided that such access allows for the complete download of the requested materials.

3. **Time Period:** Unless otherwise specified, the relevant time period for the requests below is the lifetime of The Account up to the date of production, with specific emphasis on activity logs from December 1, 2025, to the present.
4. **Privilege Log:** If any document or portion thereof is withheld on the grounds of privilege or policy violation, Google must identify the document and the specific basis for withholding it in a privilege log.

III. SPECIFIC DOCUMENTS TO BE PRODUCED

REQUEST NO. 1: All email communications associated with The Account, including but not limited to messages contained in the Inbox, Sent, Drafts, Trash, Spam, and Archive folders. This request includes the full content of the email body, header information, and all file attachments.

REQUEST NO. 2: All files, folders, and documents stored in the "Google Drive" service associated with The Account. This includes, but is not limited to, Google Docs, Google Sheets, Google Slides, PDFs, images, and any other file types uploaded to or created within the Drive storage.

REQUEST NO. 3: All contact lists and address book entries associated with The Account.

REQUEST NO. 4: All calendar entries, appointments, and reminders associated with The Account.

REQUEST NO. 5: All access logs, IP address logs, and security activity records for The Account from **December 1, 2025, to the present**. This request specifically seeks records sufficient to identify the IP addresses, devices, and geographic locations of all successful and failed login attempts during this period.

REQUEST NO. 6: All records, internal notes, or communications regarding the disablement, suspension, or termination of The Account on or about December 18, 2025, including the specific policy violation cited as the cause for disablement.

REQUEST NO. 7: Any and all data preserved pursuant to the Litigation Hold notice previously served upon Google by Plaintiff regarding The Account.